

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

DAVID HUGHES

SUMMONS WITH NOTICE

Plaintiff,

Index Number: _____/2013

-against-

**Date Index Number
purchased:** _____

**NEW YORK CITY POLICE DEPARTMENT,
THE CITY OF NEW YORK, and
POLICE OFFICER ROBERT LOCHER**

Claim No.: 2013PI007923

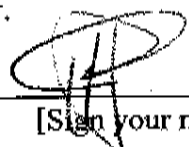
Defendants.

To the Person(s) named as Defendant(s) above:

PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED to appear in this action by serving a notice of appearance on the plaintiff(s) at the address set forth below, and to do so within 20 days after the service of this Summons (not counting the day of service itself), or within 30 days after service is complete if the summons is not delivered personally to you within the state of New York.

YOU HEREBY NOTIFIED THAT should you fail to answer or appear, a judgment will be entered against you by default for the relief demanded below.

Dated: 26 July 2013
[Date of summons]


[Sign your name]

**The Law Firm of Ray & Associates
Attorneys for Plaintiff
445 Park Ave. 10th Fl.
New York, NY 10022
212-333-8764**

Defendant(s) City of New York
 100 Church Street
 New York, NY 10007

New York City Police Department
1 Police Plaza
New York, NY 10038

Notice: The nature of this action is **[briefly describe the nature of your case against the defendant(s), such as, breach of contract, negligence]:**

The relief sought is **[briefly describe the kind of relief you are asking for, such as, money damages of \$25,000]:**

Money Damages

Should defendant(s) fail to appear herein, judgment will be entered by default for the sum of determined by court **[amount of money demanded]**, with interest from the date of from date of default **[date from which interest on the amount demanded is claimed]** and the costs of this action.

Venue:

Plaintiff designates New York County as the place of trial. The basis of this designation is

[check the box that applies]:

Plaintiff(s) residence in:

☒ New York ☐ Richmond ☐ Westchester
☐ Queens ☐ Kings
☐ Bronx ☐ Nassau

Defendant(s) residence in:

☐ New York ☐ Richmond ☐ Westchester
☐ Queens ☐ Kings
☐ Bronx ☐ Nassau

☐ Other [See CPLR Article 5]: _____

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

DAVID HUGHES

Index Number: _____/2013

VERIFIED COMPLAINT

Plaintiff,

-against-

NEW YORK CITY POLICE DEPARTMENT,
THE CITY OF NEW YORK, and
POLICE OFFICER ROBERT LOCHER
Defendants.

Claim No.: 2013PI007923

COMES NOW the Plaintiff, David Hughes, by and through his attorney, James R. Ray III, and for his Complaint against the defendants above named, hereby allege the following upon information and belief:

JURISTITION AND VENUE

1. That the court has jurisdiction over the parties and the subject matter of this action under NY CPLR §301.
2. That venue is proper in this court pursuant to NY CPLR §505.
3. That all claims for relief set forth in this complaint arise from a common nucleus of operative facts.
4. That this entire action constitutes a single case which should be heard in a single judicial proceeding.

NOTICE OF SUIT

5. That notice of suit against a public entity, pursuant to NYCPLR section 50(e), has been given to defendant in a timely fashion.
6. That prior to the institution of this action, on 20 March 2013, within ninety (90) days after plaintiff's action arose, plaintiff caused to be served upon the defendant, a Verified Notice of Claim and Intention to sue, sworn to by claimant, containing a statement of the name and post office address of the claimant and of his attorney, the nature of the claim, the time when, and place where, and the manner in which the claim arose, and the items of damage or injuries claimed to have been sustained, so far as then practicable, that the

action was commenced by the service of a Summons and Complaint on the defendant at least thirty (30) days after presentation of said claim and within one (1) year and ninety (90) days after the cause of action thereof occurred.

7. That on 11 July 2013, the defendant conducted an examination of the claims pursuant to NY Gen. Mun. Law §50-h.
8. That the plaintiff, David Hughes, is a resident of the State of New York in the County of New York.
9. That the defendant, City of New York, is a municipal corporation within the state of New York.
10. That the defendant, the New York City Police Department, is a municipal corporation within the state of New York.
11. Defendant, Robert Locher ("Officer Locher" is a police officer employed by the New York City Police Department.

**CLAIM FOR RELIEF ON BEHALF OF
THE PLAINTIFF DAVID HUGHES
AGAINST THE DEFENDANTS**

12. Police officers are never allowed to needlessly arrest members of the public.
13. When a police officer knows a member of the public is not in possession of any weapons, the police officer is not permitted to arrest that member of the public for possession of a firearm.
14. Police officers must always make sure that probable cause exist before making an arrest to prevent harm to members of the public.
15. Police officers who needlessly arrest a member of the public have breached the police oath to protect and serve members of the public.
16. Defendant, Police Officer, Robert Locher, owed plaintiff, David Hughes a duty as a member of the community and public to protect and serve him and to avoid making arrests, absence probable cause to support the charge.
17. Police Officers' conduct must not detract from the communities' faith in the criminal justice system.

18. Police Officers are not allowed to carry out their duties in a manner that exceeds their authority in the enforcement of the law.
19. That on 2 March 2013, while leaving a party on 141 Street and Fifth Avenue, Officers of the New York City Police Department stopped Mr. Hughes at 134th Street and Lenox Avenue.
20. That, defendant Officer Locher, searched Mr. Hughes and found no weapons, no drugs or any other illegal contraband.
21. That, defendant Officer Locher, is employed by the New York City Police Department proceeded to place Mr. Hughes under arrest for possession of a firearm.
22. That plaintiff did not pose a threat to the safety of Officer Locher or the community at the time of his arrest.
23. That, defendant Officer Locher, during his interrogation of Mr. Hughes demanded that Mr. Hughes sign a false confession to having a weapon.
24. That, defendant Officer Locher, could not produce any firearm that he allegedly seized from Mr. Hughes' person at his arraignment.
25. Police Officers must never make false accusations.
26. That, defendant Locher, violated his official oath to protect and serve Mr. Hughes, as a member of the community who posed no threat to either Officer Locher or the community at the time of his arrest.
27. That, the plaintiff did not assume the risk of being falsely accused and arrested.
28. That, as a direct and proximate result of defendant Officer Locher's false accusation, Mr. Hughes was jailed for four (4) days in a holding cell at 32nd Precinct, New York, New York.
29. That, the plaintiff did not contribute to the harm caused to him by his false arrest and the four (4) days he spent in jail.
30. That, as a direct and proximate result of defendant Officer Locher's false accusation, Mr. Hughes suffered personal injuries including, but not limited to; (1) false arrest, (2) false imprisonment, (3) emotional distress, (4) malicious prosecution and (5) willful violation of civil rights under 42 U.S.C. 1983.

31. Defendant, Police Officer, Robert Locher, restricted Mr. Hughes' freedom in violation of the Constitution of the United States.

WHEREFORE, plaintiff demands judgment against the defendants and in favor of the plaintiff for an award of money damages together with costs and disbursements of this action.

Dated: 26 July 2013
New York, NY



James R. Ray III
The Law Firm of Ray & Associates
Attorneys for Plaintiff
DAVID HUGHES
445 Park Ave., 10th Floor
New York, NY 10022
212-333-8764

VERIFICATION

David Hughes, being duly sworn, deposes and says: I am the plaintiff in the above-entitled action. I have read the foregoing complaint and know the contents thereof. The same are true to my knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters I believe them to be true.

David Hughes
DAVID HUGHES

Sworn to before me this 26th

day of July, 2013

Carmelita A. Riley
Notary Public

